

PEACE OR PERSECUTION?

Race, Class, and Colonialism in the Development of American Policing, 1840-1870

COBY MULLIKEN

Milton Academy '23

4

IN THE UNITED STATES TODAY, few institutions are more controversial than the police. While positions on the topic vary greatly, with some figures calling for total abolition and others declaring their unconditional support, the centrality of the topic to American political discourse is undeniable.¹ To illustrate this fact, one need look no further than the protests against police brutality that engulfed the nation following the murder of George Floyd by the Minneapolis Police Department. Those protests garnered the attendance of roughly 20 million Americans, likely making them the most widely attended protests in American history.² It would be a mistake, however, to assume that this conflict between police and their opponents is entirely unique within American history or that police became involved in repression only recently. Rather, law enforcement forces have participated in social conflict for as long as they have existed, from the first night watches established by the European settlers to the mass surveillance and counter-intelligence of the Cold War FBI.

Yet today, the narrative that police developed solely in order to ensure the safety of the average citizen persists, manifesting itself everywhere from encyclopedias to public

¹ Examples of these positions include Tom Cotton, "Send In the Troops," editorial, *New York Times*, June 3, 2020, accessed April 28, 2021, <https://www.nytimes.com/2020/06/03/opinion/tom-cotton-protests-military.html>, and Mariame Kaba, "Yes, We Mean Literally Abolish the Police," editorial, *New York Times*, June 12, 2020, <https://www.nytimes.com/2020/06/12/opinion/sunday/floyd-abolish-defund-police.html>.

² For an upper bound estimate, see *KFF Health Tracking Poll*, 11, June 2020, <https://files.kff.org/attachment/Topline-KFF-Health-Tracking-Poll-June-2020.pdf>; for a lower bound see Kim Parker, Juliana Horowitz, and Monica Anderson, *Amid Protests, Majorities Across Racial and Ethnic Groups Express Support for the Black Lives Matter Movement*, 16, June 12, 2020, https://www.pewresearch.org/social-trends/wp-content/uploads/sites/3/2020/06/PSDT_06.12.20_protest-report-TOPLINE.pdf.

discourse.³ Contrary to this belief, however, police forces in the United States arose less out of a need to prevent violent crime and more out of a desire to preserve racial, colonial, and class power structures. This development can be seen best in three disparate regions of nineteenth-century America: in the American South, where the racial hierarchies of the antebellum period were preserved by the emergence of organized law enforcement, in Los Angeles, where early police forces protected colonial hegemony, and in Chicago, where the nascent Chicago Police Department maintained the dominance of the local owning class. Even beyond these geographies, the establishment of organizations with a legal monopoly on force irrevocably shaped social and political hierarchies in ways that continue to reverberate today.

If one is to examine the development of police forces in conditions as varied as those that existed in the early United States, they must first answer the question, “What defines the police?” Beginning with sociologist Max Weber’s formulation of the state, which he defines as a “human community that claims the monopoly of the legitimate use of physical force within a given territory,” one can broadly define police as the individuals to whom the government delegates that monopoly.⁴ The earliest forces fitting this definition in pre-independence America were not actually “police,” per se, but rather night watches, the first of which emerged in Boston in 1636.⁵ The night watch required individual citizens to volunteer their time to watch the streets and prevent lawlessness or crime (however it might locally have been defined).⁶ While in theory the system was well-designed, in practice it was anything but; watchmen frequently drank on job, or otherwise paid others to do the service for them.⁷ As one Raleigh resident complained in 1800, “Last Saturday night the warehouse... was broken open... yet the citizens of Petersburg are taxed to the amount of 1800 dollars... for the support of a night watch!”⁸ The other law enforcement institution present for much of American history is the sheriff’s office, and by extension,

5

³ Antoinette W. Satterfield, “Police, History of,” in *The Social History of Crime and Punishment in America: An Encyclopedia*, ed. Wilbur R. Miller (SAGE Publications, 2012), <http://doi.org/10.4135/9781452218427.n536>.

⁴ Max Weber, “Politics as a Vocation,” in *From Max Weber: Essays in Sociology*, ed. C. Wright Mills (New York: Oxford University Press, 1946); Lawrence W. Sherman, “Perspectives on Police and Violence,” *The Annals of the American Academy of Political and Social Science* 452 (November 1980), <https://www.jstor.org/stable/1042755>; Jean-Paul Brodeur, “Police Et Coercition,” *Revue Française De Sociologie* 35, no. 3 (1994): 457, <https://doi.org/10.2307/3322215>.

⁵ Gary Potter, “The History of Policing in the United States,” Eastern Kentucky University, <https://plsonline.eku.edu/sites/plsonline.eku.edu/files/the-history-of-policing-in-us.pdf>.

⁶ Potter, “The History of Policing.”

⁷ Potter, “The History of Policing.”

⁸ “Raleigh, Tuesday, Aug. 26, 1800,” *Raleigh Register*, August 26, 1800, <https://link.gale.com/apps/doc/GT3012643035/NCNP>.

posse comitatus. Translating to “power of the county,” the posse comitatus had its roots in medieval England, where local sheriffs would occasionally call upon the armed men of a county to defend against invasion or apprehend a felon.⁹ In America, their roles stayed much the same. The property-owning males of a county would elect a sheriff, who would then capture fleeing criminals either via posse comitatus or hired deputies.¹⁰ But as the United States’ population exploded and underwent myriad social changes, these systems could no longer bear all that was asked of them.

The role of early police and police-like forces in preserving racial hierarchy in the Southern United States cannot be understated. But to fully understand the importance of Southern policing, one must first understand the dynamics of the slave economy. From the seventeenth century onwards, enslaved people formed the backbone of the Southern economy, toiling on cotton plantations and attending to White slave masters.¹¹ But this expendable source of labor came with a downside for White Southerners: as the population of enslaved people began to outnumber the White population in some states, slave rebellions became more likely.¹² As one Southern historian framed it, “The slave population presented the problem of a police control that would... hold in check this irresponsible and often dangerous part of Southern society.”¹³ And while the oversight and punishment of slaves had long been the domain of the slave owner, these tasks were often too taxing for the individual master to conduct himself.¹⁴

Thus emerged the slave patrol. With its roots in both medieval English law enforcement and the plantation societies of the seventeenth and eighteenth century Caribbean, slave patrols were tasked with controlling nearly every aspect of slave life.¹⁵ Legally, their principal task was the enforcement of slave codes, legal codes that restricted, among other things, the marriage, movement, and testimony of slaves.¹⁶ Broadly speaking, the in-

⁹ David B. Kopel, “The Posse Comitatus And The Office Of Sheriff: Armed Citizens Summoned To The Aid Of Law Enforcement,” *Journal of Criminal Law and Criminology* 104, no. 4 (Fall 2015): 772, <https://scholarlycommons.law.northwestern.edu/jclc/vol104/iss4/3/>.

¹⁰ Kopel, “The Posse,” 784-787.

¹¹ Kenneth M. Stampp, *The Peculiar Institution: Slavery in the Ante-bellum South*, vintage books ed. (New York: Vintage Books, 1989), 34.

¹² Sally E. Hadden, *Slave Patrols: Law and Violence in Virginia and the Carolinas* (Cambridge: Harvard University Press, 2003), 6.

¹³ Howell Meadoes Henry, “The Police Control of the Slave in South Carolina” (PhD diss., Vanderbilt University, 1914), 28.

¹⁴ Hadden, *Slave Patrols*, 7.

¹⁵ Hadden, *Slave Patrols*, 3, 11.

¹⁶ Rose E. Vaughn, “Black Codes,” *Negro History Bulletin* 10, no. 1 (October 1946): 17-18, <https://www.jstor.org/stable/44174624>.

stitution was quite popular among White Southerners, and for good reason. In the words of James Henry Hammond, the former governor of South Carolina, “Small guards in our cities, and occasional patrols in the country, insure us a repose and security known nowhere else.”¹⁷ The “small guards” to which he referred were, of course, slave patrols. But how exactly did these patrols ensure security?

The answer lay in their manifold strategies and tactics of repression, those which would greatly shape policing in the years to come. One of the most important strategies used to suppress Black dissent or revolt was the “pass system,” which required patrolmen to detain and punish any slave caught leaving their plantation without a pass from their slavemaster. When some slaveholders began granting slaves more general passes, The Daily Telegraph of Colombia, South Carolina, registered their outrage at the measure:

A ‘general pass’... is an outrage on the community, illegal in itself and will no longer be recognized. With a proper and specific pass a slave is always safe... It must be obvious to every one, that where they neither limit the bearer to time or place, gross abuses must necessarily arise under them.¹⁸

The outrage likely came from a fear that lackluster enforcement of slave codes could enable slaves to gather in larger groups, and, ultimately, render slave patrols useless. Slave patrols, however, were not alone in providing violent protection to white supremacy. Constables—essentially unpaid policemen—were responsible for many of the same tasks as patrolmen, such as apprehending runaway slaves, enforcing the pass system, and breaking up gatherings of Black people, both enslaved and free.¹⁹ Though de jure separate, in practice the line between these two groups often blurred, with constables even paying slave patrols to capture runaways for them.²⁰

The niche that these groups filled, that being the enforcement of racial supremacy, never truly disappeared. Though slave codes were annulled after the Civil War, “black codes” remained, and they too demanded an institution to enforce them.²¹ In most cases, these new institutions (now officially called “police”) were not new at all, but rather replicas of the patrols that had preceded them. Staffed by a motley crew of former patrolmen

¹⁷ Hadden, *Slave Patrols*, 6.

¹⁸ Henry, “The Police,” 30. Limited information on citation in original.

¹⁹ Hadden, *Slave Patrols*, 83.

²⁰ Hadden, *Slave Patrols*, 84.

²¹ Theodore Brantner Wilson, *The Black Codes of the South* (Tuscaloosa: University of Alabama Press, 1965), 65-66.

and ex-Confederate soldiers, the reconstituted police departments continued to subjugate Black people and protect the white supremacist order.²² Overall, the development of organized police forces out of an array of white supremacist institutions, ranging from constables' offices to slave patrols, illustrated the immense role of hierarchy in stimulating the monopolization of legalized force. But just as police played a great role in protecting the Southern white ascendancy, the Western United States too had hierarchies in dire need of violent protection.

In Los Angeles, the necessity of preserving colonial hierarchy over the Native inhabitants made inevitable the proliferation of policing and incarceration. But before either the American or Spanish empires could force such practices on the hotly contested frontier town, the Native residents of the area lived with a justice system of their own. In this system, restitution and punishment for crimes were carried out "not on behalf of the larger community or village, but for the individuals who were wronged."²³ Come the Spanish conquest in the late eighteenth century, this order was quickly displaced by a far more punitive one, in which Native practices, like slash-and-burn farming, were prohibited and forced labor prevailed.²⁴ The laws imposed by the Spanish led to a rapid increase of the prison population, driven largely by the incarceration of male Natives who refused to work for the settlers at what were essentially starvation wages.²⁵ Among the Spanish population, incarceration was less common, and social order was mostly enforced by the strong ties of both family and church.²⁶

Yet even as social hierarchy abounded and the United States assumed control, the area still lacked a formal police force. Despite the lack of law enforcement, the first act of the new American government was to hire a jailer to staff the county jail, at that time the only publicly-owned property in the whole city.²⁷ But amid rising social unrest, violence, and racism towards Natives, jailing alone was seen as insufficient in terms of securing order for Los Angeles's White society. Although a sheriff's office, officially "The Los Angeles

²² Connie Hassett-Walker, "How You Start is How You Finish? The Slave Patrol and Jim Crow Origins of Policing," *Human Rights Magazine*, January 12, 2021, https://www.americanbar.org/groups/crsj/publications/human_rights_magazine_home/civil-rights-reimagining-policing/how-you-start-is-how-you-finish/.

²³ Steven W. Hackel, *Children of Coyote, Missionaries of Saint Francis: Indian-Spanish Relations in Colonial California, 1769-1850* (Chapel Hill: University of North Carolina Press, 2005), 321.

²⁴ Kelly Lytle Hernández, *City of Inmates: Conquest, Rebellion, and the Rise of Human Caging in Los Angeles, 1771-1965* (Chapel Hill: University of North Carolina Press., 2017), 55-56.

²⁵ Hernández, *City of Inmates*, 57.

²⁶ Robert M. Fogelson, *The Fragmented Metropolis: Los Angeles, 1850-1930* (Cambridge: Harvard University Press, 1967), 26.

²⁷ Hernández, *City of Inmates*, 61-62.

Rangers,” had been established in 1852, the murder rate in the county continued to grow, reaching a whopping 370 homicides per 100 thousand people by the mid-1850s.²⁸

However, violence was not the only issue driving White citizens to call for greater policing. In fact, the mere experience of living amongst those they regarded as inferior played just as great a role, as can be seen in this 1859 editorial in the *Los Angeles Star*:

The employment of Indians by civil authorities—more especially of the city—has been, and is daily productive of evil and deserving of unqualified condemnation. The Indians thus selected and clothed with a brief and illegal authority, are in no respect in advance of the mass of their degraded race; and the constantly recurring scenes enacted in our streets, wherein these miserable creatures of both sexes are dragged to jail by a crowd of equally miserable and oftentimes, more intoxicated and beastly Indian officials, serve but to divest law of its majesty.²⁹

The article, authored by the foreman of a local jury, followed this claim with a call for a vast expansion of vagrancy laws, which essentially provided for the incarceration of Natives living but not working in the city—all in all, a ploy to further convert the Native population into an entirely dependent work force.³⁰ The foreman’s demands were soon granted and the City Council gradually increased the scope of the codes, with the explicit intent of “compelling [Indians] to obtain an honest livelihood or seek their old homes in the mountains.”³¹ Naturally, expanded vagrancy laws would require a larger police contingent to enforce them, and thus was born the Los Angeles Police Department. From its inception in 1869, the department was beholden to the city’s ruling class, arresting scores of Natives, who, in many cases, were “auctioned [as slaves] to private employers.”³² As for crime prevention, the new police force remained fairly ineffective due to a combination of mismanagement, politicization, and corruption.³³ Throughout each era in Los Angeles’s early

9

²⁸ Eric H. Monkkenen, “Homicide in Los Angeles, 1827-2002,” *The Journal of Interdisciplinary History* 36, no. 2 (Autumn 2005): 172, <https://www.jstor.org/stable/3656155>. One should note that due to the relatively small population of Los Angeles at the time, per capita homicide statistics were incredibly volatile.

²⁹ W.M. H. Peterson, “Presentment of the Grand Jury -- February Term, A.D. 1859,” *Los Angeles Star*, March 12, 1859, <http://digitallibrary.usc.edu/cdm/ref/collection/p15799coll68/id/411>.

³⁰ Ronald C. Woolsey, “Crime and Punishment: Los Angeles County, 1850-1856,” *Southern California Quarterly* 61, no. 1 (Spring 1979): 80, <https://doi.org/10.2307/41170812>.

³¹ Hernández, *City of Inmates*, 68.

³² Hernández, *City of Inmates*, 64.

³³ Paul M. De Falla, “Lantern in the Western Sky,” *The Historical Society of Southern California Quarterly* 42, no. 1 (March 1960): 79, <https://www.jstor.org/stable/41169431>.

history, this cycle was repeated; the colonizing population would feel threatened by an underclass, impose restrictions on the rights of that underclass, and finally expand their use of force in order to secure those restrictions. In summary, although widespread violence and disorder had significant influence, it was ultimately the preservation of White colonial hegemony that necessitated the creation of organized law enforcement in Los Angeles.

Looking beyond racial and ethnic hierarchies, structures of class hierarchy too played a great part in stimulating the creation of police forces. Though such hierarchies were present in every major American city of the time, the city of Chicago is particularly instructive in illuminating this development. Chicago, like many other cities in the 1840s, was riddled with crime and unrest. Brawls frequently erupted in rum shops, fights broke out on street corners, and a general atmosphere of violence prevailed.³⁴ This sense was underscored by a background of immense ethnic and class-based strife, primarily between the native-born Protestant elite and a fast-growing Catholic immigrant working class, who by 1844 made up over 30% of the city's inhabitants.³⁵ Although the immigrant population, staffing factories, warehouses, and meatpacking plants, fueled much of the city's industrial growth, wealthy Protestants had become deeply suspicious of the group's culture.³⁶ Their objections were both economic and moral; on one hand, they opposed the immigrants' demands for better wages and union representation, and on the other they scorned the drinking culture that many Germans and Irish regarded as pastime.³⁷

It was the issue of drinking that ultimately brought the ruling and working classes into open conflict, and in turn, prompted the growth of the Chicago Police Department.³⁸ The conflict began in 1855, with the election of Mayor Levi Boone, a nativist temperance advocate running on the American Party line. In his inaugural address, he proclaimed his opposition to Catholics, who he claimed were "bound under an oath of allegiance to the

³⁴ John Joseph Flinn and John Elbert Wilkie, *History of the Chicago Police: From the Settlement of the Community to the Present Time, under Authority of the Mayor and Superintendent of the Force* (Chicago: Under the auspices of the Police Book fund, 1887), 56.

³⁵ Flinn and Wilkie, *History of the Chicago*, 57.

³⁶ Robert A. Slayton, *Back of the Yards: The Making of a Local Democracy* (Chicago: University of Chicago Press, 1988), 21.

³⁷ David Moberg, "Antiunionism," in *The Encyclopedia of Chicago*, by James R. Grossman, Ann Durkin Keating, and Janice L. Reiff (University of Chicago Press, 2004), <http://encyclopedia.chicagohistory.org/pages/55.html>; Sam Mitrani, *The Rise of the Chicago Police Department: Class and Conflict, 1850-1894*, Working class in American history (University of Illinois Press, 2013), 14, PDF.

³⁸ One should note that the cultural and economic dimensions of the conflict were ultimately inextricable, and that the push for control over immigrant drinking culture was deeply related to the issue of class.

temporal, as well as the spiritual supremacy of a foreign despot.”³⁹ Additionally, he pledged to crackdown on Sunday drinking, a popular activity among the city’s working class, since Sunday was traditionally their only day off.⁴⁰ Though keen on fulfilling his promise, Boone soon encountered a problem: the city lacked a force capable of enforcing his anti-immigrant temperance legislation. Undeterred by the situation, he proceeded to hire eighty native-born policemen, who were put under his direct control.⁴¹ He also vastly expanded the powers of other city officials, granting both himself and the aldermen police-like powers.⁴² Finally, on April 21, 1855, a crowd of German protestors gathered at the Cook County courthouse, demanding that taverns be allowed to open on Sundays. Boone responded by ordering his newly formed police department to disperse the crowd and continue to arrest the defiant tavern-owners. In a standoff that would later come to be known as the “Lager Beer Riot,” protestors and policemen clashed for much of the day, resulting in one death and roughly sixty arrests.⁴³

While Boone, with his ordinance ultimately abandoned and unenforced, was unsuccessful in exerting social control over the city’s immigrant poor, in the long run his police force would have much greater success. As in other major cities, like New York and London, riots and strikes came to be far more effective at spurring elites to action than individual crimes like murder or theft.⁴⁴ In Chicago, the Lager Beer Riot served the same purpose; only nine days after, the City Council passed a slate of modernizing reforms to the city’s police department, in what “amounted to the department’s real founding.”⁴⁵ Even after Boone’s legacy had been mostly forgotten, the department continued to serve the purpose he had originally set out for it: protecting the interests of the city’s owning class. For example, the privately-owned Illinois Central railroad company made frequent use of the department (as well as private contractors) in protecting against strikers or other provocateurs.⁴⁶ Later, in the aftermath of the Great Fire of 1871, the department used extensive force to protect the property of the city’s wealthy, killing six supposed “arsonists” in

³⁹ Ron Grossman, “Chicago’s Lager Beer Riot proved immigrants’ power,” *Chicago Tribune*, September 25, 2015, <https://www.chicagotribune.com/history/ct-know-nothing-party-lager-beer-riot-per-flashback-jm-20150925-story.html>.

⁴⁰ Mitrani, *The Rise*, 14.

⁴¹ Mitrani, *The Rise*, 15.

⁴² Mitrani, *The Rise*, 20.

⁴³ Grossman, “Chicago’s Lager.”

⁴⁴ Daniel Walker Howe, *What Hath God Wrought: The Transformation of America, 1815-1848* (New York: Oxford University Press, 2007), 432.

⁴⁵ Mitrani, *The Rise*, 24.

⁴⁶ Carlton J. Corliss, *Main Line of Mid-America: The Story of the Illinois Central* (New York: Creative Age Press, 1950), 59.

the following weeks, despite little evidence to suggest that any arson had occurred at all.⁴⁷ As these events show, the conservation of class hierarchy constituted the most important factor in the founding and expansion of the Chicago Police Department.

However, one must note that neither Chicago, nor Los Angeles, nor even the American South can fully encapsulate the hierarchical nature of policing in America. Rather, hierarchies of all dimensions were instrumental in bringing about the creation of police departments across the country, in some cases reflecting deeply localized phenomena, like the dominance of a powerful family or the suppression of an insurgent political group. And while the locales discussed so far are indeed rather artificially chosen, together they reveal a society marred by a fundamental contradiction, that those appointed to protect citizens from violence are also tasked with violently upholding systems of caste. Whether and how American society will ever sort out this contradiction is impossible to know, but one thing is certain: America's police forces were founded to oppress, and, *sans* reckoning or insurrection, will continue to do just that.

⁴⁷ Mitrani, *The Rise*, 76-77.